

Number 46 *of* 2015

CLIMATE ACTION AND LOW CARBON DEVELOPMENT ACT 2015

REVISED

Updated to 12 October 2021

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All Acts up to and including the *Climate Action and Low Carbon Development Act 2021* (32/2021), enacted 23 July 2021, and all statutory instruments up to and including the *Climate Action and Low Carbon Development Act 2015 (Greenhouse Gas Emissions) Regulations 2021* (S.I. No. 531 of 2021), made 12 October 2021, were considered in the preparation of this Revised Act.

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Number 46 *of* 2015

CLIMATE ACTION AND LOW CARBON DEVELOPMENT ACT 2015

REVISED

Updated to 12 October 2021

An Act to provide for the approval of plans by the Government in relation to climate change for the purpose of pursuing the transition to a low carbon, climate resilient and environmentally sustainable economy; to establish a body to be known in the Irish language as An Chomhairle Chomhairleach um Athrú Aeráide or, in the English language, as the Climate Change Advisory Council; and to provide for matters connected therewith.

[10 *th December*, 2015]

Be it enacted by the Oireachtas as follows:

Interpretation

1. In this Act—

"Act of 2001" means the Local Government Act 2001;

F1**[**"administrative area" has the meaning assigned to it by the Act of 2001;**]**

"Agency" means the Environmental Protection Agency;

"adaptation" means any adjustment to—

(a) any system designed or operated by human beings, including an economic, agricultural or technological system, or

(b) any naturally occurring system, including an ecosystem,

that is intended to counteract the effects (whether actual or anticipated) of climatic stimuli, prevent or moderate environmental damage resulting from climate change or confer environmental benefits;

"Advisory Council" has the meaning assigned to it by *section 8(2)*;

F1**[**"annual report" has the meaning assigned to it by section 12(1)(b);**]**

F1**[**"approved climate action plan" means a climate action plan approved by the Government under section 4(9);**]**

"approved national adaptation framework" means a national adaptation framework approved by the Government under *section 5* and includes any variation or revision of such framework made in accordance with that section;

F1**[**"approved national long term climate action strategy" means a national long term climate action strategy approved by the Government under section 4(9);**]**

(5) A Minister of the Government to whom a request has been made F12**[**under *subsection (1)* or *(1A)*F12**]** shall, before submitting a sectoral adaptation plan to the Government—

(a) publish, in such manner as he or she considers appropriate, a draft of the sectoral adaptation plan that he or she proposes to make,

(b) publish a notice on the internet and in more than one newspaper circulating in the State inviting members of the public and any interested parties to make submissions in writing in relation to the proposed sectoral adaptation plan, as the case may be, within such period (not exceeding 2 months from the date of the publication of the notice) as may be specified in the notice, and

(c) have regard to any submissions made pursuant to, and in accordance with, a notice under *paragraph (b)*.

(6) The Government may—

(a) approve, or

(b) approve, subject to such modifications as they consider appropriate,

a sectoral adaptation plan submitted to them under this section.

(7) F12**[**A Minister of the Government, or 2 or more Ministers of the Government in the case of a joint sectoral adaptation plan, may,**]** at any time, make and submit to the Government for approval a plan (in this section also referred to as a "sectoral adaptation plan") revising or replacing an approved sectoral adaptation plan.

(8) The Government may vary or revise a sectoral adaptation plan approved by them under this section.

(9) A sectoral adaptation plan shall not be implemented unless it has been approved by the Government in accordance with this section.

(10) Where F12**[**under *subsection (1)* or *(1A)*F12**]**, the Government requests the Minister to make a sectoral adaptation plan, for the purposes of *subsection (3)(a)*, the Minister shall consult with any other Minister of the Government as he or she considers appropriate.

F10**[**(11) For the purposes of performing their respective functions under this section, the Minister and the Government shall have regard to the matters specified in *section 4(8)*.

(12) A reference in this Act to a sectoral adaptation plan shall, where the context admits, be construed as a reference to a joint sectoral adaptation plan.**]**

Preparation of carbon budgets

F14**[6A.** (1) A carbon budget, consistent with furthering the achievement of the national climate objective, shall be proposed by the Advisory Council, finalised by the Minister and approved by the Government for the period of five years commencing on 1 January 2021 and ending on 31 December 2025 and for each subsequent period of five years (in this Act referred to as a "budget period").

(2) A carbon budget shall be made for three sequential budget periods so that, at any one time, there is a series of three carbon budgets which have effect under *section 6B* (in this Act referred to as a "carbon budget programme").

(ii) which takes account of—

(I) the most recent national greenhouse gas emissions inventory and projection of future greenhouse gas emissions, prepared by the Agency,

(II) relevant scientific advice, including with regard to the distinct characteristics of biogenic methane,

(III) international best practice on the reporting of greenhouse gas emissions and removal, and

(IV) in so far as practicable, the need to maximise employment, the attractiveness of the State for investment and the long term competitiveness of the economy,

(b) have regard to climate justice when carrying out its functions under this section, and

(c) the Advisory Council shall comply with regulations under *subsection (5A)* when carrying out its functions under this section.

(10) (a) The Minister shall, when preparing a carbon budget and a sectoral emissions ceiling, recommend to Government to decide that a Minister of the Government may comply with the carbon budget, and a sectoral emissions ceiling for which that Minister of the Government has responsibility, by the removal of greenhouse gas emissions.

(b) Where the Government approves the recommendation of the Minister under *paragraph (a)*, the Minister of the Government concerned shall, when complying with the carbon budget and the sectoral emission ceiling for which that Minister of the Government has responsibility, comply with regulations made by the Government under *subsection (11)*.

(11) (a) The Government shall make regulations for the purpose of—

(i) determining how the removal of greenhouse gas emissions may be taken into account, and in particular the method of calculating and accounting for such removals, including the base year to be applied to such removals, when complying with a carbon budget and a sectoral emissions ceiling,

(ii) specifying which removals may be used for the purposes referred to in *subparagraph (i)*, and

(iii) determining the mechanism by which such removals are to be effected.

(b) When making regulations under *paragraph (a)* the Government shall have regard to the rules applied by the European Union in respect of the matters specified in *subparagraphs (i)* to *(iii)* of *paragraph (a)*.**]**

F15**[Approval of carbon budget**

6B. (1) The Minister, within four months of the receipt of a carbon budget under *section 6A*, shall—

(a) cause a copy of the carbon budget to be presented to both Houses of the Oireachtas,

(b) consider the carbon budget,

(c) amend, if appropriate, and finalise the carbon budget,

(b) approve, subject to such modifications as they consider appropriate,

a carbon budget submitted to them under *subsection (8)(d)*.

(11) Where a carbon budget is approved by the Government under *subsection (10)*, the Minister shall, as soon as may be, cause a copy of the carbon budget to be laid before each House of the Oireachtas and it shall have effect from the date on which it is laid before the Houses, or the second such House if it is laid before the Houses on different dates.

(12) Not more than 30 days after a carbon budget takes effect under *subsection (7)* or *(11)*, as the case may be, the Minister shall publish the carbon budget in such manner as the Minister considers appropriate.

(13) A Minister of the Government shall, in so far as practicable, perform his or her functions in a manner consistent with a carbon budget that has effect under *subsection (7)* or *(11)*, as the case may be.

(14) This section applies to the first carbon budget programme and to an amendment to a provisional carbon budget in the same manner as it applies to a carbon budget, and a reference in this section to a carbon budget shall, where the context admits, be construed as a reference to the first carbon budget programme or to an amendment to a provisional carbon budget, as the case may be.**]**

F16**[Sectoral emissions ceiling**

6C. (1) The Minister shall prepare, within the limits of the carbon budget, the maximum amount of greenhouse gas emissions that are permitted in different sectors of the economy during a budget period (in this Act referred to as a "sectoral emissions ceiling") and different ceilings may apply to different sectors.

(2) The sectors of the economy to which each sectoral emissions ceiling shall apply shall be determined from time to time by the Government.

(3) The Minister shall, when preparing a sectoral emissions ceiling, consult with such Ministers of the Government as he or she considers appropriate.

(4) The Minister shall, as soon as may be after a carbon budget takes effect under *section 6B*, finalise and submit each sectoral emissions ceiling to the Government for approval.

(5) The Government may—

(a) approve, or

(b) approve, subject to such modifications as they consider appropriate,

a sectoral emissions ceiling.

(6) Where a provisional carbon budget is amended under *section 6B* or a carbon budget is revised under *section 6D*, the Minister shall—

(a) consult with such Ministers of the Government as he or she considers appropriate, and

(b) revise, if appropriate, a sectoral emissions ceiling for the budget period concerned.

(7) Where the Minister revises a sectoral emissions ceiling under *subsection (6)(b)*, he or she shall, as soon as may be, submit the revision to the sectoral emissions ceiling to the Government for approval.

(8) The Government may—

(a) approve, or

(b) approve, subject to such modifications as they consider appropriate,

the revision to the sectoral emissions ceiling.

(9) A Minister of the Government shall, in so far as practicable, in the performance of his or her functions, comply with the sectoral emissions ceiling that applies to the sector for which that Minister of the Government has responsibility.

(10) For the purposes of performing their respective functions under this section, the Minister and the Government shall have regard to the matters specified in *paragraphs (a)* to *(n)* of *section 4(8)*.**]**

F17**[Revision of carbon budgets**

6D. (1) The Minister may revise a carbon budget in the circumstances set out in *subsection (2)*, *(4)* or *(5)*.

(2) The Minister may revise a carbon budget where—

(a) new obligations are imposed on the State under the law of the European Union or any international agreement referred to in *section 2*, or

(b) there are significant developments in scientific knowledge in relation to climate change.

(3) As soon as may be after the end of each budget period, the Agency shall provide the greenhouse gas emissions inventory for that budget period to the Minister and the Minister shall review the greenhouse gas emissions during that budget period.

(4) Where the total greenhouse gas emissions for a preceding budget period are less than the carbon budget for that period, the Minister may carry forward the surplus from the preceding budget period to the current budget period and the current carbon budget shall be increased by the surplus carried forward.

(5) Where the total greenhouse gas emissions for a preceding budget period exceed the carbon budget for that period, the Minister shall carry forward the excess greenhouse gas emissions from the preceding budget period to the current budget period and the current carbon budget shall be decreased by the amount of greenhouse gas emissions that are carried forward.

(6) The Minister shall consult with and consider the advice of the Advisory Council prior to requesting the approval of the Government in relation to a revision of a carbon budget under this section.

(7) The Minister shall, as soon as may be, submit the revision to a carbon budget under *subsection (2)*, *(4)* or *(5)* to the Government for approval and the Government may—

(a) approve, or

(b) approve, subject to such modifications as they consider appropriate,

the revision to a carbon budget submitted to them under this subsection.

(8) A revision to a carbon budget under this section shall have effect from the date on which it is approved by the Government.

(iv) a sectoral adaptation plan,

(v) the carbon budget programme, and

(vi) any sectoral emissions ceiling,

and**]**

(e) such other advice or recommendations as the Advisory Council considers necessary or appropriate—

(i) for the purposes of the development and implementation of the national policy regarding climate change, and

(ii) in relation to likely future obligations of the State under the law of the European Union or an international agreement.

(8) Not more than 30 days after submitting a periodic review report to the Minister in accordance with this section, the Advisory Council shall publish the report by such means as the Agency may advise.

Presentation of annual transition statement to each House of the Oireachtas

14. F30**[**...**]**

F31**[Climate Reporting**

14A. (1) The Minister shall, in each year after the publication of the annual report and the Agency's reports, at the written request of a joint committee, attend before it to give an account, for the period of the annual report, of the following matters:

(a) progress under the most recent approved climate action plan, including the policies, mitigation measures and adaptation measures that have been adopted;

(b) whether there has been a reduction or increase in greenhouse gas emissions based on the Agency's reports;

(c) compliance with the carbon budget and any measures envisaged to address any failure to so comply;

(d) the implementation of adaptation policy measures under the most recent approved national adaptation framework.

(2) Each Minister of the Government shall, in each year after the publication of the annual report and the Agency's reports, at the written request of a joint committee, attend before such committee to give an account of the matters specified in *subsection (3)*.

(3) For the purposes of *subsection (2)*, each Minister of the Government shall, in relation to the sector for which the Minister of the Government has responsibility, give an account, for the period of the annual report, of the following matters:

(a) sector specific progress under the most recent approved climate action plan, including the policies and measures that have been adopted and any significant failure to implement such policies and measures, or to achieve sector specific targets;

(b) whether there has been a reduction or increase in greenhouse gas emissions based on the Agency's reports;

(c) compliance with the sectoral emissions ceiling and any measures envisaged to address any failure to so comply;

(d) the implementation of adaptation policy measures and any adaptation policy measures envisaged, where a sectoral adaptation plan has been prepared.

(4) The joint committee may, where it considers it appropriate, having received an account from the Minister under *subsection (1)* or a Minister of the Government under *subsection (2)*, prepare a report on the recommendations of the committee with regard to any of the matters specified in *paragraphs (a)* to *(d)* of *subsection (1)* or in *paragraphs (a)* to *(d)* of *subsection (3)*, as the case may be, and where the committee prepares such a report, it shall provide a copy of the report to the Minister of the Government concerned.

(5) A Minister of the Government shall consider any report provided to him or her under *subsection (4)* and that Minister shall provide a response in writing to the joint committee within a period of three months of the receipt of that report.

(6) In this section, 'the Agency's reports' means the national greenhouse gas emissions inventory and the projection of future greenhouse gas emissions prepared by the Agency.**]**

F32**[Role of local authority**

14B. (1) Each local authority shall prepare and make a plan relating to a period of five years (in this section referred to as a "local authority climate action plan") which shall specify the mitigation measures and the adaptation measures to be adopted by the local authority.

(2) A local authority shall make a local authority climate action plan—

(a) in the case of the first such plan, within 12 months of the receipt of a request from the Minister, which request shall be made not later than 18 months after the coming into operation of section 16 of the Climate Action and Low Carbon Development (Amendment) Act 2021, and

(b) in the case of each subsequent plan, not less than once in every period of five years.

(3) A local authority climate action plan shall, in so far as practicable, be consistent with the most recent approved climate action plan and national adaptation framework, and in making a local authority climate action plan, a local authority shall have regard to—

(a) the most recent approved national long term climate action strategy,

(b) the most recent approved sectoral adaptation plans, and

(c) any policies of the Minister or the Government on climate change.

(4) In making the local authority climate action plan, a local authority shall—

(a) consult and co-operate with adjoining local authorities,

(b) consult with the Public Participation Network in the administrative area of the local authority and such other persons as the local authority considers appropriate,

(c) co-ordinate, where appropriate, with adjoining local authorities in relation to the mitigation measures and adaptation measures to be adopted,